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Executive Order

Article XXIII of the Consular Regulations of 1896 is hereby canceled and the following substituted: Repealed 1940 C.R. 223

ARTICLE XXIII

PERSONAL ESTATES OF CITIZENS DYING WITHOUT THE UNITED STATES

385. Duties of consul by statute.—It is made the duty of a consular officer, where the laws of the country permit—

First. To take possession of the personal estate left by any citizen of the United States, other than seamen belonging to any vessel, who shall die within their consulate, leaving there no legal representative, partner in trade, or trustee by him appointed to take care of his effects. (Paragraphs 390–393.)

Second. To inventory the same with the assistance of two merchants of the United States, or, for want of them, of any others at their choice. (Paragraphs 394–396.)

Third. To collect the debts due the deceased in the country where he died and pay the debts due from his estate which he shall have there contracted. (Paragraphs 398, 399.)

Fourth. To sell at auction, after reasonable public notice, such part of the estate as shall be of a perishable nature, and such further part, if any, as shall be necessary for the payment of his debts, and, at the expiration of one year from his decease, the residue. (Paragraphs 397–400.)

Fifth. To transmit the balance of the estate to the Treasury of the United States, to be holden in trust for the legal claimant; except that if at any time before such transmission the legal representative of the deceased shall appear and demand his effects in their hands they shall deliver them up, being paid their fees, and shall cease their proceedings.—*R. S. Sec. 1709.* (Paragraphs 401, 521.)

386. Deaths to be published and reported.—For the information of the representative of the deceased, the consular officer, in the settlement of his estate, shall immediately notify his death in one of the gazettes published in the consular district, and also to the Secretary of State, that the same may be notified in the State to which the deceased belonged; and he shall, as soon as may be, transmit to the Secretary of State an inventory of the effects of the deceased taken as before directed.—*R. S. Sec. 1710.*

387. Where there is a will.—When any citizen of the United States dying abroad leaves, by any lawful testamentary disposition, special directions for the custody and management, by the consular officer of the port or place where he dies, of the personal property of which he dies possessed in such country, such officer shall, so far as the laws of the country permit, strictly observe such directions. When any such citizen so dying appoints, by any lawful testamentary disposition, any other person than such officer to take charge of and manage such property, it shall be the duty of the officer, whenever required by the person so appointed, to give his official aid in whatever way may be necessary to facilitate the proceedings of such person in the lawful execution of his trust, and, so far as the laws of the country permit, to protect the property of the deceased from any interference of the local authorities of the country where such citizen dies; and to this end it shall be the duty of such consular officer to place his official seal upon all of the personal property or effects of the deceased and to break and remove such seal as may be required by such person, and not otherwise. R. S. Sec. 1711. (Paragraph 407.)

388. Consul's duty auxiliary.—The administration of the personal effects of the deceased takes place at his domicile; the function of the consul, when he is

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called upon to act, is auxiliary to that of the domiciliary administrator; and his authority relates only to the property and debts in the foreign country where the decedent died.—*7 Op. Att. Gen. 274.*

389. In absence of treaty consul to act, unless local authorities object.—The authority of consuls with respect to the effects of deceased citizens can be exercised, however, only so far as is permitted by the authorities of the country, or is accorded by established usage, or is provided for by treaty or the laws of the country. The United States have treaties with some countries providing for the exercise by consular officers of the authority conferred by the foregoing statutes. (Paragraphs 410, 416, and 533). When there is no treaty, the consular officer, in the absence of a known unwillingness on the part of the local authorities, should act as far as he may be permitted; but he should avoid the appearance of opposing or disregarding actual local requirements.

390. Authority extends to personal property alone.—The authority of the consular officer extends, under the statutes, to personal property alone.—*7 Op. Att. Gen. 270–272.* In the absence of special provision by treaty the devolution and transfer of real property are governed by the law of the place where the property is situated as administered by the local officials. For jurisdiction in matter of real estate in non-Christian countries, see Article XXX.

391. Effects of seamen covered by other regulations.—The personal effects of a seaman belonging to an American vessel who dies without the United States are administered under other provisions of law. (*Paragraphs 255–258.*)

392. Effects of citizen dying on high seas.—When a citizen of the United States, not a seaman, dies on the high seas, whether on board an American or foreign vessel, and the effects of the deceased are brought within a consular district, it is the duty of the consular officer, when practicable, to take charge of them. He should promptly report the circumstances of the case to the Department of State, informing it at the same time of the kind and amount of effects or money left by the deceased, and of his residence and the names of his relatives, if these can be obtained. The members of his family or near relatives who are with him while traveling may be allowed to take possession of the effects.

393. Where there is a legal representative or partner in trade.—If the decedent has left in the consular district a legal representative, partner in trade, or trustee by him appointed to take care of his effects, the intervention of the consular officer is required only to the extent of giving his official aid to facilitate the proceedings of such person, as is directed in paragraph 409.

394. Inventory and appraisement.—The inventory required on taking possession of the property should be made with great care and with the assistance of two merchants of the United States or other proper persons, who shall also act jointly with the consular officer as appraisers of the articles placed in the inventory, giving the estimated value of each.

395. What inventory includes.—The inventory should cover all the personal effects of the decedent that have come into the consul's hands, including account books, personal letters, evidences of debt not due and payable in the country of his decease, letters of credit, and other things which may or may not be assets in the consular officer's hands for the payment of debts. Nothing, on the other hand, should be included in the inventory which is not in the consular officer's possession. The commercial books of the deceased are to be placed in the inventory and particularly described, the number of pages each of the said books contains being mentioned; and the consular officer will place a certificate, signed by himself, at the beginning and the end of each book, in such a manner as to prevent any addition being made to them. The letter books of the deceased are comprehended in the term commercial books.

396. Inventory to be signed and recorded.—When completed, the inventory should be signed by all the persons who united in making it and authenticated by the consular seal. It should then be recorded and a copy should be sent to the Department of State.

397. Sale of perishable property.—As soon as the inventory is completed steps should be taken to sell perishable property, if any, at auction after reasonable public notice. Such notice should be given in at least one of the newspapers of the place, if any be printed there, both in English and in the language of the country; and, when practicable, the same notice should be given that is directed by the laws of the country for the judicial sale of property in execution.

398. What debts may be collected.—In collecting debts due the decedent the consular officer may collect those due outside his consular district, but he may not go beyond the limits of the country in which the decedent died.—*R. S. Sec. 1709.*

399. What funds applied to debts.—The decedent's debts should be paid out of the cash resources of the estate in the consular officer's hands, viz, the money among the effects, the proceeds of the sale of perishable property, and the money paid by the decedent's debtors. If these funds are insufficient, the consular officer may sell at auction, after proper advertisement, as much of the remaining personal property as may be required to meet the demands, taking care to sell first the articles which are most marketable and at the same time least likely to be desired by the family of the deceased for preservation. A claim for damages for a wrongful act of the decedent is not a debt which the consul may pay, unless it has been reduced to judgment.—*18 Pick. 36.*

400. Articles having sentimental value.—Jewelry and other articles having a sentimental value to relatives as keepsakes should be sold only in case of necessity, and, when practicable, the members of the decedent's family or his relatives should be notified, in order that they may purchase these articles if they desire. Evidences of debt not due and payable in the country where the decedent died and letters of credit are not assets, and they should not be sold.

401. After one year residue of estate paid into Treasury.—In one year after the death of the decedent, the consular officer is required to convert into money the residue of the estate left after paying the local debts and transmit the same to the Treasury of the United States, to be held in trust for the legal representatives. The articles mentioned in the preceding paragraph and remaining unsold should be sent to the Treasury along with the unused assets, to be delivered to the legal representative of the deceased.

402. Delivery to legal representative.—If at any time before transmission to the Treasury the legal representative of the deceased demands the effects in the hands of the consular officer, the latter shall deliver them up, the prescribed fees being paid, and shall cease his proceedings. The consular officer is required to be at all times ready to deliver the effects and papers of a deceased citizen of the United States to the person who presents legal authority to receive them as representative of the deceased owner.

403. When right of legal representative is doubtful.—In case of doubt about the legal validity of a claimant's right to the effects of a deceased citizen, the consular officer may require him to prove his claim in the local courts; and rival claims to represent the deceased, if involving doubtful questions, may be relegated to the courts for settlement.

404. Account of receipts and expenditures.—The consular officer is required to enter on his consular books a regular account between himself and the estate of the deceased, in which he shall enter to his own debit all the moneys and effects that come into his hands, and to his credit all the payments he may make, and, finally, the remainder that he may deliver over to the legal representative or remit to the Treasury so as to close the account. A copy of this account shall be delivered to the representative of the deceased, and another shall be transmitted to the Comptroller General of the United States.

405. Final settlement and account.—As soon as an estate shall be finally settled as far as the consular officer is concerned, he shall give notice thereof to the Department of State, transmitting at the same time an itemized statement of the receipts and expenditures on account of the estate, and showing the amount in money or the effects which have been delivered to the representative of the deceased or sent to the Comptroller General of the United States, as the case may be.

406. Retiring consul to close account of effects.—When one consul retires from office and is succeeded by another, the effects of deceased citizens which have been in the consul's hands more than one year and which ought to have been remitted to the Treasury should be remitted and accounted for by the outgoing officer, and not turned over to his successor. (*Paragraph 68.*)

407. Intervention where a will.—In the case where, by a testamentary disposition of the deceased, some person other than the consular officer is appointed to take charge of and manage the property, the latter has a right to require, before intervening officially, that the will should be probated so as to give it legal effect. If the decedent leaves a will intended to operate in the United States, it is the right of the consular officer and his duty, in the absence of adult heirs on the spot, to see to the safe-keeping of the will and its transmission to the parties entitled. (*Paragraph 387.*)

408. Not authorized to employ counsel.—Consular officers are not authorized to employ counsel, either at the expense of the Government or of the estate, in the collection and disposition of the effects of citizens of the United States.

409. Consul provisional conservator of property.—A consular officer is by the law of nations and by statute the provisional conservator of the property within his district belonging to his countrymen deceased therein. He has no right, as a consular officer, apart from the provisions of treaty, local law, or usage, to administer on the estate, or in that character to aid any other person in so administering it, without judicial authorization. His duties are restricted to guarding and collecting the effects, and to transmitting them to the United States, or to aid others in so guarding, collecting, and transmitting them, to be disposed of pursuant to the law of the decedent's State.—*7 Op. Att. Gen., 274.* It is, however, generally conceded that a consular officer may intervene by way of observing the proceedings, and that he may be present on the making of the inventory.

410. Fees for taking into possession and settling estates.—A consular officer shall collect the appropriate fee (Fee No. 12 of the Tariff of United States Consular Fees) for every personal estate of a deceased American (except an American seaman) coming into his possession, and shall account for the same in his quarterly return of fees to the Comptroller General of the United States next following the collection. This fee shall in all cases have priority over other obligations of the estate, and a consular officer who waives its collection becomes liable to the Government for the amount.

411. *Transporting remains of consular officers and subordinates.*—It is customarily provided by the annual appropriation acts passed by the Congress that the expense of transporting to their former homes in the United States for interment the remains of consular officers, and American clerks at consulates, who die abroad or in transit, while in the discharge of their official duties, shall be defrayed by the Government, together with the ordinary and necessary expenses of interment.

412. Canceled.

413. Canceled.

414. Canceled.

415. Canceled.

416. *Estates in countries in which consular officers exercise judicial authority.*—In those countries in which consular officers exercise judicial authority, the property of deceased American citizens is administered under the probate jurisdiction of the consular courts without interference in any respect by the local governments. In China the functions of consular officers in connection with the estates of decedents have been modified by the statutes creating the United States Court for China and defining its authority.

CALVIN COOLIDGE

THE WHITE HOUSE,
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GOVERNMENT PRINTING OFFICE